THE PERSONALITY OF ASSOCIATIONS

I

THE state knows certain persons who are not men. What is the nature of their personality? Are they merely fictitious abstractions, collective names that hide from us the mass of individuals beneath? Is the name that gives them unity no more than a convenience, a means of substituting one action in the courts where, otherwise, there might be actions innumerable? Or is that personality real? Is Professor Dicey right when he urges [1] that "whenever men act in concert for a common purpose, they tend to create a body which, from no fiction of law but from the very nature of things, differs from the individuals of whom it is constituted"? Does our symbolism, in fact, point to some reality at the bottom of appearance? If we assume that reality, what consequences will flow therefrom?

Certainly no lawyer dare neglect the phenomena of group life, even if on occasion [2] he denies a little angrily the need for him to theorize about them. For man is so essentially an associative animal that his nature is largely determined by the relationships thus formed. The churches express his feeling that he has need of religion. His desire for conversation and the newspapers results in the establishment of clubs. The necessity of social organization gave birth to the state. As his commercial enterprise began to annihilate distance, the trading company came into being. It would not, one urges, be over-emphasis to assert that in every sphere of human activity associations of some kind are to be found. They are the very life-breath of the community.[3]

And, somehow, we are compelled to personalise these associations. They demand their possessive pronouns; the church has "its" bishops. They govern a singular verb; the railway company

[1] LAW AND PUBLIC OPINION, p. 165.

[2] See, for instance, H. A. SMITH, LAW OF ASSOCIATIONS (1914), p. 129.

[3] On the relation between individual personality and social groups the reader will find much of deep interest in WILFRED RICHMOND, PERSONALITY AS A PHILOSOPHICAL PRINCIPLE (1900). I personally owe much to this fascinating book.